

SENATE No. 1108

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting the malicious doxing of personal information.

PETITION OF:

NAME:

Barry R. Finegold

DISTRICT/ADDRESS:

Second Essex and Middlesex

SENATE No. 1108

By Mr. Finegold, a petition (accompanied by bill, Senate, No. 1108) of Barry R. Finegold for legislation relative to the malicious doxing of personal information. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 971 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting the malicious doxing of personal information.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 214 of the General Laws is hereby amended by inserting after
2 section 3B the following section:-

3 Section 3C. Malicious Doxing

4 (a) For the purposes of this section, the following words shall have the following
5 meanings, unless the context clearly requires otherwise:

6 “Disseminate”, disclose, distribute, share, publish, exhibit, advertise, release, transfer or
7 otherwise make available.

8 “Family member”, an individual’s parent, grandparent, sibling, spouse, domestic partner,
9 child, stepchild, grandchild, parent-in-law, mother-in-law, child-in-law or sibling-in-law.

“Gender-affirming health care services”, all supplies, care and services of a medical, behavioral health, mental health, surgical, psychiatric, therapeutic, diagnostic, preventative, rehabilitative or supportive nature relating to the treatment of gender dysphoria.

“Harassment”, conduct constituting the crime of criminal harassment pursuant to section 43A of chapter 265.

“Personal information”, information that:

(i) identifies, relates to or is reasonably capable of being associated with a specific individual or such individual’s family member; and

(ii) reveals such individual's or such family member's:

(1) home address, including a primary or secondary residence;

(2) home phone number or cell phone number;

(3) social security number;

(4) electronic mail address; or

(5) school or employment location.

“Reproductive health care services”, all supplies, care and services of a medical, behavioral health, mental health, surgical, psychiatric, therapeutic, diagnostic, preventative, rehabilitative or supportive nature relating to pregnancy, contraception, assisted reproduction, miscarriage management or the termination of a pregnancy.

“Stalking”, conduct constituting the crime of stalking pursuant to section 43 of chapter 265.

(b) A plaintiff may bring a civil action in the superior court against another person for the malicious doxing of personal information if the plaintiff establishes by a preponderance of the evidence that:

(i) the defendant knowingly disseminated the personal information of the plaintiff or the plaintiff’s family member;

(ii) the defendant knew or reasonably should have known that the plaintiff or the plaintiff’s applicable family member did not consent to such dissemination of their personal information;

(iii) the defendant disseminated the personal information with the malicious intent to cause, aid, encourage or facilitate the harassment, stalking, death or bodily injury of the plaintiff or the plaintiff’s family member; and

(iv) the dissemination of the personal information:

(1) poses an imminent and serious threat to the safety of the plaintiff or the plaintiff’s family member; provided, however, that the person disseminating the personal information knows or reasonably should have known of the imminent and serious threat;

(2) results in the harassment, stalking, death or bodily injury of the plaintiff or the plaintiff’s family member; or

(3) would cause a reasonable individual to fear the harassment, stalking, death or bodily injury of the individual or the individual’s family member.

(c) A plaintiff who prevails in a claim under this section may recover actual damages, punitive damages, injunctive relief, reasonable attorney fees, and any other appropriate equitable relief.

(d) In determining the overall amount of damages to assess against a person pursuant to this section, the court shall consider whether the personal information was disseminated along with other sensitive information about the individual or the individual's family member, including, but not limited to, information concerning:

(i) the racial or ethnic origin, citizenship or immigration status, sexual orientation or religious beliefs of the individual or the individual's family member;

(ii) a past or present mental or physical health condition, disability, diagnosis or treatment of the individual or the individual's family member; or

(iii) whether the individual or the individual's family member is seeking, providing, facilitating or promoting gender-affirming or reproductive health care services.

(e) A person found liable under this section shall be jointly and severally liable with each other person found liable under this section for the damages, reasonable attorney fees and costs awarded by the court arising from the same violation of this section.

(f) This section shall not be construed to impose liability on any of the following entities:

(i) an interactive computer service, as such term is used in 47 U.S.C. 230, including a provider of a virtual private network; (ii) an information service provider, telecommunications provider, interconnected VoIP service or a mobile service provider, as such terms are used in 47 U.S.C. 153; (iii) a commercial mobile service provider, as such term is used in 47 U.S.C. sec. 332(d); or

(iv) a cable operator, as such term is used in 47 U.S.C. sec. 522; provided, however, that the entity is acting in its capacity as a provider of such services and the content in question is provided by another person other than the entity.

(g) This section shall not apply to the dissemination of personal information:

(i) for the purposes of reporting conduct reasonably believed to be unlawful;

(ii) gathered in the exercise of the constitutionally protected rights of freedom of speech and assembly; or

(iii) for the purposes of a party's exercise of its right to petition, as such term is defined in section 59H of chapter 231.

(h) An action under this section shall be commenced not later than 2 years after the occurrence of the conduct that gives rise to a claim for relief.

SECTION 2. Section 1 shall apply to conduct occurring on or after the effective date of this act.